

conspiracy facts.” As such, the Demurrer is sustained without leave to amend on this basis as to the following: Federal criminal law claims: 11, 22, 29 (Compl., pp. 25, 30-31, 34-35); State criminal law claims: 12, 18 (Compl., pp. 26, 29); and Federal civil law claims: 9, 21 (Comp., pp. 24, 30).

The Court agrees that sovereign immunity bars Plaintiff’s *Government Code* §1983 claims against the State of California, the Secretary of State’s office, and the state executive branch officials and employees. Even “state officers sued in their official capacity are not considered persons under section 1983,” and are therefore immune under both “the Eleventh Amendment and the doctrine of sovereign immunity.” *Venegas v. County of Los Angeles* (2004) 32 Cal.4th 820, 829. Plaintiff’s position in this regard is that he “does not maintain a §1983 damages claim against the State, the Secretary of State’s Office, or official-capacity defendants as though those entities were “persons” for damages purposes”, which appears to the Court to be an acknowledgement of the deficiencies of the pleading and the Demurrer is sustained on this basis. The Court grants leave to amend.

Lastly, Defendants argue that Plaintiff has not complied with the presentation requirement of the Government Claims Act (*Civil Code* section 945.4) [as Plaintiff correctly points out, the correct reference would be to *Government Code* §945.4], which requires a written claim be presented to and denied by a public entity before Plaintiff may maintain an action for money or damages. In his opposition, Plaintiff states that he “narrows or withdraws state-law damages theories that require Government Claims Act presentment where presentment cannot be alleged.” Once again, the Court deems this an acknowledgment of the deficiencies in Plaintiffs’ FAC, and the Demurrer is sustained on this basis, again with leave to amend.

Any amended Complaint is to be filed and served within 20 days’ notice of this order. Counsel for the Defendants shall prepare and submit a form of order consistent with this ruling within two weeks.

7. 25CV03384 ANDERSON, MICHAEL v. HARLEY-DAVIDSON MOTOR COMPANY, INC. ET AL

EVENT: Plaintiff’s Motion to Compel Further Responses to Form Interrogatories, Set One, No. 4.1

The Proof of Service indicates that the Motion was served electronically on July 7, 2026, which is only 16 Court days’ notice. Pursuant to *Code of Civil Procedure* §§1005(b), 1010.6(3)(B), an additional 2 Court days’ notice is required for electronic service. Thus, notice here is insufficient. However, the Court has considered the merits of the Motion and concludes that Plaintiff’s Motion to Compel Further Responses to Form Interrogatories, Set One, No. 4.1 is moot, Plaintiff having subsequently received a Code compliant response. The Motion is denied.